

CONDITIONS OF SUPPLY OF GOODS & SERVICES

1. **Definitions:**
 - 1.1 'Supplier': means 'Supreme Petrochem Ltd', unless otherwise provided for.
 - 1.2 'Buyer': means the person in whose name the invoice is billed to and liable for the payment of this invoice for supply of goods.
 - 1.3 'Consignee': means either the buyer or a person to whom goods are delivered/consigned on the instructions of the buyer.
 - 1.4 'Recipient': means the recipient of services to whom services are given.
 - 1.5 'Conditions': means the terms and conditions of supply set out in this invoice and any special terms and conditions agreed in writing by the supplier.
 - 1.6 'Delivery': means transfer of possession of Goods (actual or otherwise) from the supplier to the buyer at the delivery point as may be agreed.
 - 1.7 'Delivery Date': means the 'Date' and Time of Removal specified overleaf or such other date agreed in writing by the Supplier.
 - 1.8 'Delivery Point': means except as otherwise agreed between the Supplier and the Buyer, the supplier's factory, supplier's godown or any other place of storage of the supplier.
 - 1.9 'Due Date': means the date of this invoice, unless otherwise specified in the space marked 'Due on' overleaf.
 - 1.10 'Goods and Services': means the goods and services described in the box marked 'Description of Goods or Service' overleaf.
 - 1.11 'Value': means the total invoice value for the goods/services specified in the box marked 'Total Invoice Value' overleaf.
2. **Conditions Applicable:**
 - 2.1 These conditions shall apply to the contract/agreement for the sale of goods/supply of services herein by the Supplier to the Buyer/Recipient.
 - 2.2 All orders for Goods/Services shall be deemed to be an offer by the Buyer/Recipient to purchase Goods/Services pursuant to these Conditions.
 - 2.3 Acceptance of Delivery by Buyer/Consignee shall be deemed to be the conclusive evidence of the Buyer's acceptance of these conditions.
3. **Payment of Value:**
 - 3.1 The Buyer/Recipient shall pay the Value to the Supplier on the due date only by means of Cheques/Demand Drafts/Pay Orders, payable at par or by electronic transfer of funds to the credit of the Supplier's account with any designated bank unless otherwise agreed by the Supplier.
 - 3.2 Interest on the overdue invoice shall accrue from the Due Date from day to day until the date of payment at a rate of 24% per annum or at such other rate or rates of interest as may be revised by the Supplier from time to time. Interest will be payable along with GST leviable thereon as the case may be
 - 3.3 If the Buyer/Recipient fails to make any payment on the Due Date then, without prejudice to any of the Supplier's other rights, the Supplier may:
 - (i) Suspend or cancel deliveries of any Goods/Services due to the Buyer/Recipient and/or
 - (ii) Appropriate any payment made by the Buyer/Recipient to such of the Goods/Services (or goods/services supplied under any other contract with Buyer/Recipient) as the Supplier may in its sole discretion think fit.
4. **Warranty:**
 - 4.1 The Supplier warrants that the Goods will at the time of Delivery conform to the stated description, specification and quantity of the Goods overleaf.
5. **Acceptance of the Goods:**
 - 5.1 The Buyer shall be deemed to have accepted Goods on Delivery.
 - 5.2 After acceptance of Delivery, the Buyer is not entitled to reject the Goods, unless agreed in writing by the Supplier.
 - 5.3 Unless a demand or claim is made in writing by the Buyer on the Supplier for breach of warranty within 7 days of Delivery of Goods, the Supplier shall be discharged from all liabilities thereafter.
 - 5.4 In the event of the Buyer/Consignee failing to take delivery of goods ordered by the Buyer, the Supplier may, in addition to its other remedies, recall or deal with the goods at its absolute discretion. In such cases the Buyer will be liable to reimburse the Supplier for all charges, costs and expenses incurred in dispatching and recalling the goods including actual bank/freight/handling and demurrage charges including applicable taxes thereon and the Supplier's statement of all such charges shall be binding on the Buyer.
6. **Title and Risk**
 - 6.1 Title to Goods shall pass on to the Buyer on Delivery.
 - 6.2 Risk in Goods shall pass on to the Buyer on Delivery.
 - 6.3 The Supplier shall continue to have a lien on the goods sold under the invoice until payment is received and realized by the Supplier.
7. **Taxes, levies, etc.:**
 - 7.1 The Buyer/Recipient shall pay on demand without any demur or protest such sum of money as the Supplier may pay or that the Supplier may become liable to pay, towards any taxes, duties and levies (including GST) together with interest and penalty in respect of the supplier of Goods/Services herein.
8. **Other Discounts:**
 - 8.1 Provided that
 - (i) no payment(s) is / are due from the Buyer/Recipient to the Supplier, and
 - (ii) no breach of any of the other Conditions is committed by the Buyer/Recipient.the supplier shall, in accordance with the policy/agreement of the Supplier from time to time made known prior to removal of goods/provisions of Service to Buyer/Recipient, pay to the Buyer/Recipient amount or amounts due on account of discount, provided however that the Supplier may adjust such amounts due to the Buyer/Recipient against the value and/or other amounts, if any due from the Buyer/Recipient.
9. **Compliance and Indemnity:**
 - 9.1 Buyer hereby undertakes and warrants to comply, at all times, with the applicable laws including but not limited to the Plastic Waste Management Rules 2016 as amended from time to time and notifications and directives issued thereunder ("PWM Rules"), in relation to the use of the Goods.
 - 9.2 Buyer expressly undertakes and warrants that the Goods shall not be used, directly or indirectly, in production of banned single use plastic ("SUP") items, listed in PWM Rules including plastic sheets < 50 micron thickness, non-woven carry bags < 60 GSM, Carry bags < 75 micron thickness w.e.f. 30.9.21 and 120 micron thickness w.e.f. 31.12.2022
 - 9.3 Buyer shall indemnify the Seller against the losses, claims, damages, liabilities, suits, proceedings, costs and expenses (including legal fees) arising as a result of breach of any applicable laws including the aforesaid.
10. **Jurisdiction:**
 - 10.1 This contract shall be governed and interpreted in accordance with the laws of India.
 - 10.2 All disputes arising out of this contract shall be subject to the jurisdiction of the courts in Mumbai.

SEC SIGN.